

Court No. - 39

Case :- WRIT - C No. - 21666 of 2020

Petitioner :- Sodan Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Santosh Kumar Srivastava, Alka Srivastava

Counsel for Respondent :- C.S.C., Ajay Kumar

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

As prayed, let the matter be placed on 13.1.2021.

Learned counsel for the petitioner shall inform Sri Ajay Kumar, learned counsel for the Power Corporation about the date fixed.

Order Date :- 8.1.2021

Shahnawaz

Court No. - 21

Case :- WRIT - C No. - 21666 of 2020

Petitioner :- Sodan Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Santosh Kumar Srivastava, Alka Srivastava

Counsel for Respondent :- C.S.C., Ajay Kumar

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Sanjay Kumar Pachori, J.

List this matter again before the appropriate Court on 21.1.2021.

Order Date :- 13.1.2021

T. Sinha

Case :- WRIT - C No. - 21666 of 2020

Petitioner :- Sodan Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Santosh Kumar Srivastava, Alka Srivastava

Counsel for Respondent :- C.S.C., Ajay Kumar

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, Shri Ajay Kumar, learned counsel appearing on behalf of respondent Nos. 2 and 3 and learned Standing Counsel representing the State-respondents.

Instant writ petition has been filed seeking the following relief:

" 1. Issue a writ, order or direction in the nature of certiorari quashing the recovery citation dated 11.9.2020 issued by Tehsildar Khekra, district Baghpat and the demand notice dated 10.6.2020 issued by the Executive Engineer/Prescribed Authority, Pashchimanchal Vidyut Vitran Nigam Limited, Baghpat.

2. Issue a writ, order or direction in the nature of mandamus restraining the respondents from realizing any amount from the petitioner pursuant to the aforesaid recovery citation dated 11.9.2020 issued by the Tehsildar Khekra, district Baghpat to the petitioner and the demand notice dated 10.6.2020 issued by the Executive Engineer/Prescribed Authority, Pachchimanchal Vidyut Vitran Nigam Limited, Baghpat."

It is submitted by the learned counsel for the petitioner that a first information report was lodged by the respondent-authority on 16.7.2019 under Section 135 of the Electricity Act. However, the petitioner has received a demand notice dated 10.6.2020 and in pursuance thereof recovery citation has been issued on 10.9.2020. The entire exercise has been done without following procedure as contained in Section 126(3) of the Electricity Act and clause 8 of the Electricity Supply code, 2005.

Learned counsel for the petitioner further contended that after filing of the writ petition, learned counsel for the respondents was directed to obtain instructions, but in the meantime on

11.1.2021 the official of respondent-Corporation arrived at the premises of the petitioner and disconnected the electricity connection of the petitioner when the matter is sub-judice before this Court.

Learned counsel appearing on behalf of respondents Power Corporation submitted that the petitioner has failed to give reply to the demand notice dated 10.6.2020 within stipulated period of 30 days and hence, there is no illegality or perversity in proceeding to recovery the amount as arrears of land revenue by the impugned recovery citation dated 11.9.2020.

Considering the submissions of the learned counsel for the parties, we dispose of the writ petition with the directions to the petitioner to move a fresh representation before respondent No. 3 within two weeks from today, which shall be considered and decided by a reasoned and speaking order by respondent No. 3 strictly in accordance with law within four weeks thereafter after affording due opportunity of hearing to the petitioner.

The electric connection of the petitioner shall be restored immediately.

For a period of six weeks or till the disposal of the representation by respondent No. 3 whichever is earlier, no coercive measure shall be taken against the petitioner.

Order Date :- 21.1.2021

Ishrat